

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid,

you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's

office or a local advocate can give you the forms and walk you through

them, often
the same day. A domestic violence advocate (reachable through the
hotline above)
can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here
whenever you
are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case.
The dates below are
estimates generated automatically — **always confirm the
exact date with the court
or a lawyer.**

□ Lorraine signed the power of attorney paper on December 8, 2025. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-01-07
- **Basis:** Minn. Stat. § 518.12 (respondent's answer due 30 days after service of the petition)
- **Triggering event:** served on 2025-12-08
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. In a Minnesota dissolution/family matter the answer is generally due 30 days after you were served with the petition. Estimated — confirm the exact date with the court or a lawyer. If more than 30 days have passed since you were served and you have not answered, contact the court right away — a default could

be entered against you. Ask about filing a late answer or moving to set aside a default (Minn. R. Civ. P. 60.02); courts can excuse a late response for good reason.

☐ **The bank sent a letter dated June 26th. — DEADLINE MAY HAVE PASSED**

- **Estimated deadline:** 2026-07-06
- **Basis:** The cure/vacate period stated in your written notice or lease — the notice/lease term is the operative source of this period (confirm the exact deadline printed on the notice; your state's landlord-tenant statute governs the minimum period).
- **Triggering event:** notice posted on 2026-06-26
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, act now rather than assume it is over: depending on your state you may still be able to cure, raise defenses at any hearing, or ask the court to vacate a judgment entered against you. Contact the court or a lawyer immediately.

⚠ **There is an appointment on July 16th to sign listing papers.**

- **Estimated deadline:** 2026-07-16
- **Basis:** The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).
- **Triggering event:** hearing on 2026-07-16

- **Jurisdiction:** MN
 - This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.
-

⚠ **Dale grabbed my wrist hard enough to leave a bruise.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2026-06-14
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
-

Executive Summary

This intake uncovered 13 possible legal issues across the state. The issues that have the strongest support are Potential Elder Abuse (mistreatment of an older person), Undue Influence (when someone is pressured to make decisions against their will), and Incapacity at Signing (not being mentally able to understand what one is signing). **IMPORTANT:** at least one deadline seems to have already passed — Lorraine signed the power of attorney document on December 8, 2025. (calculated to be due by January 7, 2026) [Minn. Stat. § 518.12 (the response to the petition is due 30 days after it is served)]. Confirm this right away, as missing deadlines can end a case. There were also safety concerns identified in this situation; see the safety resources below. The analysis is 75% complete; answering the 10 follow-up questions below would enhance the evaluation.

Completeness Score: 75%

Untitled Intake

Generated: 2026-07-11 05:03 UTC

Matter ID: 207

Run ID: 49

Completeness: 75%

General

| Potential Elder Abuse

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/RxwfbvWrxjdHqJhrBu3RWT>

ISSUE

The physical fight and the ongoing financial transactions without Lorraine's true agreement suggest abusive behavior, which calls for a closer look into claims of elder abuse.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Elder Abuse' has not been explored with fact mappings

CONCLUSION

No elements defined

| Undue Influence

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RW5myKZOaxNl6EtRtjlHHq>

ISSUE

Given Lorraine's age and her recent hip surgery, along with the fact that she is on pain medication, there could be a reason to argue that she did not completely understand what it meant to sign the power of attorney (a legal document giving someone else the right to make decisions on her behalf).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Undue Influence' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Are there any specific legal standards or burdens of proof for establishing undue influence that need to be met in this situation?

CONCLUSION

No elements defined

Incapacity at Signing

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RDETD6YVYGhLGZbM1fBnsfj>

ISSUE

Legal standards about the ability to sign a power of attorney (a document that gives someone the authority to act on another person's behalf) require that the person granting the power (the principal) understands what it means to give such powers to the agent (the person receiving the authority). Lorraine's health condition brings up concerns about whether she fully understood this when she signed the document.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Incapacity at Signing' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What are the legal standards in the jurisdiction regarding mental capacity at the time of signing a power of attorney, and have they been documented?

CONCLUSION

No elements defined

Fraudulent Transfers

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RCNhEzNMv10oCcXlBCMrSTL>

ISSUE

The large, unclear transfers to another account and checks written for big amounts raise concerns about whether these transactions were legitimate and if they were made with Lorraine's informed consent (meaning she knew and agreed to them).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Fraudulent Transfers' has not been explored with fact mappings

CONCLUSION

No elements defined

Abuse of Power of Attorney

Claim Type: discovered | **Confidence:** 40%

ISSUE

The way Dale handles financial transactions, like taking money out and making payments to himself, could break the trust he has under the power of attorney (a legal document that allows one person to make

decisions on behalf of another). This often means he should always do what is best for the person he is representing.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse of Power of Attorney' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there a specific time frame within which a claim for abuse of power of attorney can be filed, and what evidence would be necessary to support the claim?

CONCLUSION

No elements defined

| Bank's Duty to Report

Claim Type: discovered | **Confidence:** 40%

ISSUE

Because of the pattern of withdrawals and the concerns raised, the bank must report this activity to the relevant authorities. This could result in further investigations into Dale's actions.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Bank's Duty to Report' has not been explored with fact mappings

CONCLUSION

No elements defined

Failure to Report Financial Exploitation

Claim Type: discovered | **Confidence:** 40%

ISSUE

Since Lorraine is a vulnerable adult (an adult who may be at risk of harm or unable to protect themselves), the bank's responsibility to report her situation could affect whether Dale's actions under the power of attorney (a legal document that gives someone authority to act on another person's behalf) are valid and could result in possible legal consequences for him.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Report Financial Exploitation' has not been explored with fact mappings

- **Procedural Requirement** (Priority 50): What are the reporting obligations of banks concerning suspected financial exploitation, and has any lapse in these obligations been identified?

CONCLUSION

No elements defined

More possible issues (show more)

- **Real Property Transfer Risks**: 40% confidence
- **Unconsented Real Estate Transactions**: 40% confidence

state

Financial Exploitation of a Vulnerable Adult

Claim Type: discovered | **Confidence:** 40%

ISSUE

There are several signs of unusual financial activity related to large withdrawals and transfers from Lorraine's account. This is particularly concerning given Lorraine's age and her claims that she feels intimidated by Dale.

RULE

No authorities identified for this claim.

APPLICATION

- **Vulnerability**: Supported (85% confidence) - The victim must be a vulnerable adult due to age, disability, or other factors.
 - Fact: Lorraine is 79 years old. (85% match)

- **Unauthorized Transactions:** Supported (85% confidence) - There must be evidence of transactions being conducted without the knowledge or consent of the vulnerable adult.
 - Fact: Dale took my debit card to do the shopping and never gave it back. (78% match)
 - Fact: Dale has been holding Lorraine's debit card since December. (85% match)
 - Fact: There's cash coming out at the ATM every single week, seven, eight, nine hundred dollars. (78% match)
 - Fact: The individual received the letter because neighbor Bev grabbed it. (85% match)
- **Intent to Exploit:** Supported (71% confidence) - The perpetrator must have intended to financially exploit the vulnerable adult.
 - Fact: By my figuring it's about \$14,000 gone since January. (71% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Is there a statute of limitations on filing a claim for financial exploitation of a vulnerable adult that may impact the timing of any legal actions?

CONCLUSION

3 of 3 elements supported (80% confidence)

Protection from Emotional Distress

Claim Type: discovered | **Confidence:** 40%

ISSUE

Lorraine feels scared in her own home because of Dale's threatening behavior. This could lead to a claim for emotional distress (a legal term referring to the suffering caused by someone's harmful actions) due to what he has done.

RULE

No authorities identified for this claim.

APPLICATION

- **Extreme and Outrageous Conduct:** Unsupported - The conduct of the defendant must be extreme and outrageous.
- **Causation:** Unsupported - The plaintiff must show the conduct caused significant emotional distress.

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - Element: Extreme and Outrageous Conduct
- **Unsupported Element** (Priority 40): Element 'Causation' is not yet supported by any facts
 - Element: Causation
- **Unexplored Claim** (Priority 50): Potential claim 'Protection from Emotional Distress' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Is there a specific timeline by which claims for emotional distress must be filed, and are there any jurisdictional requirements for such claims?

CONCLUSION

0 of 2 elements supported (0% confidence)

| Request to Revoke Power of Attorney

Claim Type: identified | **Confidence:** 40%

ISSUE

Lorraine clearly stated that she wants to cancel the power of attorney document (a legal form that gives someone else the authority to act on her behalf).

RULE

No authorities identified for this claim.

APPLICATION

- **Principal's Capacity:** Supported (81% confidence) - The principal must be competent to revoke the power of attorney.
 - Fact: The individual does not want to put their son in jail. (81% match)
- **Formal Revocation:** Supported (81% confidence) - The principal must follow appropriate legal procedures to revoke the power of attorney.
 - Fact: The individual wants to undo the power of attorney paper. (81% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Have the proper legal procedures been followed to ensure the revocation of the power of attorney is valid and enforceable?

CONCLUSION

2 of 2 elements supported (81% confidence)

| Improper Execution of Power of Attorney

Claim Type: discovered | **Confidence:** 20%

ISSUE

Lorraine signed the power of attorney (a legal document that allows someone to make decisions on another person's behalf) while taking pain pills. This brings up concerns about whether she was able to understand and agree to what the document meant.

RULE

No authorities identified for this claim.

APPLICATION

- **Lack of Capacity:** Supported (85% confidence) - The principal must have the mental capacity to understand the nature and consequences of executing the power of attorney.
 - Fact: Lorraine was on pain pills when she signed the power of attorney. (81% match)
 - Fact: The power of attorney shall not be effective if Lorraine becomes incapacitated or incompetent. (85% match)
- **Undue Influence:** Supported (81% confidence) - The agent must not exert improper pressure on the principal in executing the power of attorney.
 - Fact: Lorraine signed where Dale pointed. (81% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Was there a notary present when Lorraine signed the power of attorney, and does the document meet the state's requirements for execution to be valid?

CONCLUSION

2 of 2 elements supported (83% confidence)

Triage & Routing Recommendations

Primary Practice Area: General Civil

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. General Civil (Score: 0.62)

General Civil practice area (91% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	91%
Jurisdiction Match	64%
Complexity Score	20%

2. Consumer / Debt (Score: 0.33)

Consumer / Debt practice area (9% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	9%
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[HELPFUL]** Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - **Claim:** Protection from Emotional Distress
 - **Element:** Extreme and Outrageous Conduct
- [] **[HELPFUL]** Element 'Causation' is not yet supported by any facts
 - **Claim:** Protection from Emotional Distress
 - **Element:** Causation

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: Lorraine signed the power of attorney paper on December 8, 2025. (estimated 2026-01-07; Minn. Stat. § 518.12 (respondent's answer due 30 days after service of the petition)). **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. In a Minnesota dissolution/family matter the answer is generally due 30 days after you were served with the petition. Estimated — confirm the exact date with the court or a lawyer. If more than 30 days have passed since you were served and you have not answered, contact the court right away — a default could be entered against you. Ask about filing a late answer or moving to set aside a default (Minn. R. Civ. P. 60.02); courts can excuse a late response for good reason.
 - **Deadline:** 2026-01-07
- [] **[URGENT]** PAST-DUE? Confirm the deadline for: The bank sent a letter dated June 26th. (estimated 2026-07-06; The cure/vacate period stated in your written notice or lease — the notice/lease term is the operative source of this period (confirm the exact

deadline printed on the notice; your state's landlord-tenant statute governs the minimum period).). **WARNING:** this deadline appears to have **ALREADY PASSED** as of 2026-07-11. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, act now rather than assume it is over: depending on your state you may still be able to cure, raise defenses at any hearing, or ask the court to vacate a judgment entered against you. Contact the court or a lawyer immediately.

- **Deadline:** 2026-07-06

- [] **[URGENT]** Confirm the deadline for: There is an appointment on July 16th to sign listing papers. (estimated 2026-07-16; The court's own summons, hearing notice, or scheduling order setting this date — a court's order or summons is the governing primary authority for a court-scheduled appearance (confirm the date against the document itself).). This is a date the court gave you directly (a hearing, court date, or stated deadline). Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2026-07-16

- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** In a custody decision, the court must consider any domestic abuse that has occurred between the parents. In Minnesota this is a required 'best interests' factor (Minn. Stat. § 518.17); other states have an equivalent. The incident you described may matter to the custody case itself — make sure it is raised, not just handled separately. Do you have records (photos, texts, a police report) of what happened? [Authority: Minn. Stat. §

518.17, subd. 1(a)(4) (domestic-abuse best-interest custody factor)]

- [] **[IMPORTANT]** Potential claim 'Protection from Emotional Distress' has not been explored with fact mappings
 - **Claim:** Protection from Emotional Distress
- [] **[IMPORTANT]** Potential claim 'Undue Influence' has not been explored with fact mappings
 - **Claim:** Undue Influence
- [] **[IMPORTANT]** Potential claim 'Incapacity at Signing' has not been explored with fact mappings
 - **Claim:** Incapacity at Signing
- [] **[IMPORTANT]** Potential claim 'Abuse of Power of Attorney' has not been explored with fact mappings
 - **Claim:** Abuse of Power of Attorney
- [] **[IMPORTANT]** Potential claim 'Unconsented Real Estate Transactions' has not been explored with fact mappings
 - **Claim:** Unconsented Real Estate Transactions
- [] **[IMPORTANT]** Potential claim 'Failure to Report Financial Exploitation' has not been explored with fact mappings
 - **Claim:** Failure to Report Financial Exploitation
- [] **[IMPORTANT]** Potential claim 'Potential Elder Abuse' has not been explored with fact mappings
 - **Claim:** Potential Elder Abuse
- [] **[IMPORTANT]** Potential claim 'Fraudulent Transfers' has not been explored with fact mappings
 - **Claim:** Fraudulent Transfers
- [] **[IMPORTANT]** Potential claim 'Bank's Duty to Report' has not been explored with fact mappings
 - **Claim:** Bank's Duty to Report

- [] **[IMPORTANT]** Potential claim 'Real Property Transfer Risks' has not been explored with fact mappings
 - **Claim:** Real Property Transfer Risks
- [] **[IMPORTANT]** Was there a notary present when Lorraine signed the power of attorney, and does the document meet the state's requirements for execution to be valid?
 - **Claim:** Improper Execution of Power of Attorney
- [] **[IMPORTANT]** Is there a statute of limitations on filing a claim for financial exploitation of a vulnerable adult that may impact the timing of any legal actions?
 - **Claim:** Financial Exploitation of a Vulnerable Adult
- [] **[IMPORTANT]** Have the proper legal procedures been followed to ensure the revocation of the power of attorney is valid and enforceable?
 - **Claim:** Request to Revoke Power of Attorney
- [] **[IMPORTANT]** Is there a specific timeline by which claims for emotional distress must be filed, and are there any jurisdictional requirements for such claims?
 - **Claim:** Protection from Emotional Distress
- [] **[IMPORTANT]** Are there any specific legal standards or burdens of proof for establishing undue influence that need to be met in this situation?
 - **Claim:** Undue Influence
- [] **[IMPORTANT]** What are the legal standards in the jurisdiction regarding mental capacity at the time of signing a power of attorney, and have they been documented?
 - **Claim:** Incapacity at Signing

- [] **[IMPORTANT]** Is there a specific time frame within which a claim for abuse of power of attorney can be filed, and what evidence would be necessary to support the claim?
 - **Claim:** Abuse of Power of Attorney
- [] **[IMPORTANT]** What documentation or legal processes must be observed to confirm Lorraine's consent regarding real estate transactions, and has this been properly addressed?
 - **Claim:** Unconsented Real Estate Transactions
- [] **[IMPORTANT]** What are the reporting obligations of banks concerning suspected financial exploitation, and has any lapse in these obligations been identified?
 - **Claim:** Failure to Report Financial Exploitation

Gap Report Appendix

Overall Completeness: 75%

[===== - - - -] 75%

Abuse of Power of Attorney

- **Unexplored Claim** (Priority 50): Potential claim 'Abuse of Power of Attorney' has not been explored with fact mappings
 - See Action Item #9
- **Procedural Requirement** (Priority 50): Is there a specific time frame within which a claim for abuse of power of attorney can be filed, and what evidence would be necessary to support the claim?
 - See Action Item #22

Bank's Duty to Report

- **Unexplored Claim** (Priority 50): Potential claim 'Bank's Duty to Report' has not been explored with fact mappings
 - See Action Item #14

Failure to Report Financial Exploitation

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Report Financial Exploitation' has not been explored with fact mappings
 - See Action Item #11
- **Procedural Requirement** (Priority 50): What are the reporting obligations of banks concerning suspected financial exploitation, and has any lapse in these obligations been identified?
 - See Action Item #24

Financial Exploitation of a Vulnerable Adult

- **Procedural Requirement** (Priority 50): Is there a statute of limitations on filing a claim for financial exploitation of a vulnerable adult that may impact the timing of any legal actions?
 - See Action Item #17

Fraudulent Transfers

- **Unexplored Claim** (Priority 50): Potential claim 'Fraudulent Transfers' has not been explored with fact mappings
 - See Action Item #13

Improper Execution of Power of Attorney

- **Procedural Requirement** (Priority 50): Was there a notary present when Lorraine signed the power of attorney, and does the document meet the state's requirements for execution to be valid?
 - See Action Item #16

Incapacity at Signing

- **Unexplored Claim** (Priority 50): Potential claim 'Incapacity at Signing' has not been explored with fact mappings
 - See Action Item #8
- **Procedural Requirement** (Priority 50): What are the legal standards in the jurisdiction regarding mental capacity at the time of signing a power of attorney, and have they been documented?
 - See Action Item #21

Potential Elder Abuse

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Elder Abuse' has not been explored with fact mappings
 - See Action Item #12

Protection from Emotional Distress

- **Unsupported Element** (Priority 40): Element 'Extreme and Outrageous Conduct' is not yet supported by any facts
 - Element: Extreme and Outrageous Conduct
 - See Action Item #25
- **Unsupported Element** (Priority 40): Element 'Causation' is not yet supported by any facts
 - Element: Causation
 - See Action Item #26

- **Unexplored Claim** (Priority 50): Potential claim 'Protection from Emotional Distress' has not been explored with fact mappings
 - See Action Item #6
- **Procedural Requirement** (Priority 50): Is there a specific timeline by which claims for emotional distress must be filed, and are there any jurisdictional requirements for such claims?
 - See Action Item #19

Real Property Transfer Risks

- **Unexplored Claim** (Priority 50): Potential claim 'Real Property Transfer Risks' has not been explored with fact mappings
 - See Action Item #15

Request to Revoke Power of Attorney

- **Procedural Requirement** (Priority 50): Have the proper legal procedures been followed to ensure the revocation of the power of attorney is valid and enforceable?
 - See Action Item #18

Uncategorized

- **Procedural Requirement** (Priority 90): What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
 - See Action Item #4

- **Procedural Requirement** (Priority 88): In a custody decision, the court must consider any domestic abuse that has occurred between the parents. In Minnesota this is a required 'best interests' factor (Minn. Stat. § 518.17); other states have an equivalent. The incident you described may matter to the custody case itself — make sure it is raised, not just handled separately. Do you have records (photos, texts, a police report) of what happened? [Authority: Minn. Stat. § 518.17, subd. 1(a)(4) (domestic-abuse best-interest custody factor)]
 - See Action Item #5

Unconsented Real Estate Transactions

- **Unexplored Claim** (Priority 50): Potential claim 'Unconsented Real Estate Transactions' has not been explored with fact mappings
 - See Action Item #10
- **Procedural Requirement** (Priority 50): What documentation or legal processes must be observed to confirm Lorraine's consent regarding real estate transactions, and has this been properly addressed?
 - See Action Item #23

Undue Influence

- **Unexplored Claim** (Priority 50): Potential claim 'Undue Influence' has not been explored with fact mappings
 - See Action Item #7
- **Procedural Requirement** (Priority 50): Are there any specific legal standards or burdens of proof for establishing undue influence that need to be met in this situation?
 - See Action Item #20

Open Questions

1. Would you like information about asking the court for an Order for Protection now, separate from any other case?
2. Do you have records (photos, texts, a police report) of any domestic abuse occurrences that you can share?
3. Was there a notary present when Lorraine signed the power of attorney, and does the document meet the state's requirements?
4. Have the proper legal procedures been followed to ensure the revocation of the power of attorney is valid and enforceable?
5. Is there a specific time frame within which claims for emotional distress must be filed?
6. Is there a statute of limitations on filing a claim for financial exploitation of a vulnerable adult that may impact the timing of any legal actions?
7. Have you experienced situations that might fall under emotional distress claims? Can you describe them?
8. Can you share any experiences where you felt you were unduly influenced when making decisions?
9. Do you think there were any instances where Lorraine may not have been mentally capable when she signed important documents?
10. Are there any concerns you have about how the power of attorney was used for Lorraine?